Revised Cheat Sheet: Organizational Structure of Claims and Defendants

Defendants and Assigned Letters

EXMPLE
An Individual UID,
Has Their # in Ones Place

NUM#	Defendant
1	Officer Dana Gunnarson
2	Officer Catlin Blyth
3	City Of West Linn /(WLPD)
4	DDA Rebecca Portlock
5	Clackamas County Sheriff's Department
6	Clackamas County Jail
7	County Of Clackamas
8 & 9	John Does 1-2

Causes of Action and Assigned Number Blocks

Cause of Action	Assigned Number Block
1. Unlawful Arrest/False Arrest (Fourth Amendment)	**100**
2. Malicious Prosecution (Fourth & Fourteenth Amendments)	**200**
3. Conspiracy to Violate Civil Rights (42 U.S.C. § 1983)	**300**
4. Failure to Protect/Prevent Harm (Fourteenth Amendment)	**400**
5. Cruel and Unusual Punishment (Fourteenth Amendment)	**500**
6. False Imprisonment (Fourth & Fourteenth Amendments)	**600**

Cause of Action	Assigned Number Block
7. Deliberate Indifference to Medical Needs (Fourteenth Amendment)	**700**
8. Intentional Interference with Contractual Relations	**800**
9. Monell Claim – Failure to Train and Official Custom of Deliberate Indifference	**900**
10. Denial of Right to Civil Jury Trial (Seventh Amendment)	**1000**
11. Violation of Right to Due Process (Fifth & Fourteenth Amendments)	**1100**
12. Violation of Right to Counsel and Fair Trial (Sixth Amendment)	**1200**
13. Probable Cause	**1300**
14. Qualified and Absolute Immunity (42 U.S.C. § 1983)	**1400**

Elements of Each Cause of Action with Assigned Numbers and Supporting Evidence

Causes of Action and Assigned Number Blocks

Cause of Action	Assigned Number Block
1. Unlawful Arrest/False Arrest & Unlawful Detention/Confinement (Fourth Amendment)	100
2. Malicious Prosecution (Fourth & Fourteenth Amendments)	200
3. Conspiracy to Violate Civil Rights (42 U.S.C. § 1983)	300
4. Failure to Protect/Prevent Harm (Fourteenth Amendment)	400
5. Cruel and Unusual Punishment (Fourteenth Amendment)	500
6. False Imprisonment (Fourth & Fourteenth Amendments)	600
7. Deliberate Indifference to Medical Needs (Fourteenth Amendment)	700
8. Intentional Interference with Contractual Relations	800
9. Monell Claim – Failure to Train and Official Custom of Deliberate Indifference	900
10. Denial of Right to Civil Jury Trial (Seventh Amendment)	1000
11. Violation of Right to Due Process (Fifth & Fourteenth Amendments)	1100
12. Violation of Right to Counsel and Fair Trial (Sixth Amendment)	1200
13. Qualified and Absolute Immunity (42 U.S.C. § 1983)	1300

Elements of Each Cause of Action with Assigned Numbers and Supporting Evidence

1. Unlawful Arrest/False Arrest & Unlawful Detention/Confinement (100 Block)

Elements:

- **Element 110:** Intentional confinement of the plaintiff by the defendant.
  - **Fact:**
    - **Defendants (B, C, D, G)** intentionally confined Plaintiff, **Tyler Lofall**, without legal justification.
    - **West Linn Police Department (Defendant B)** officers arrested Plaintiff without probable cause, favoring **Macy**, who had previously attacked Plaintiff on March 4th and 5th, 2022.
    - **Deputy District Attorney Rebecca Portlock (Defendant G)** ignored exculpatory evidence that could have exonerated Plaintiff.
  - **Exhibits:**
    - **Exhibit 1A:** Transcript of Court Proceedings on June 10th, 2022

        - **Exhibit 3:** List of Ignored Discovery Requests and Motions
        - **Exhibit 28:** Arrest Timing Logs Demonstrating 8-Minute Arrest Process
- **Element 120:** Plaintiff was conscious of the confinement.
    - **Fact:**
        - Plaintiff was aware of being detained for **129 days** without probable cause.
        - **Macy** had already attacked Plaintiff on March 4th and 5th, 2022, but no protective measures were taken by Defendants.
    - **Exhibits:**
        - **Exhibit 4:** Police Dispatch Records from March 4th and 5th, 2022
        - **Exhibit 1A:** Transcript of Court Proceedings on June 10th, 2022
- **Element 130:** Plaintiff did not consent to the confinement.
    - **Fact:**
        - Plaintiff did not agree to the arrest and prolonged detention initiated by Defendants.
        - Arrest was based on false claims about Plaintiff having COVID-19 to delay trial.
    - **Exhibits:**
        - **Exhibit 2:** Transcript of Hearing on June 24th, 2022
        - **Exhibit 1A:** Transcript of Court Proceedings on June 10th, 2022
- **Element 140:** The confinement was not otherwise privileged (i.e., lacked probable cause).
    - **Fact:**
        - Arrest was based on false claims about Plaintiff having COVID-19, lacking legal justification.
        - **Macy** was caught with methamphetamine entering court for arraignment, undermining her credibility as a witness.
        - Police provided biased records and falsified them to support false claims against Plaintiff.
        - **West Linn Police Department (Defendant B)** blocked critical information regarding Macy's actions, failing to protect Plaintiff's property and well-being.
    - **Exhibits:**
        - **Exhibit 1A:** Transcript of Court Proceedings on June 10th, 2022
        - **Exhibit 14:** Criminal Case Record No. 22CR10908
        - **Exhibit 7:** West Linn Police Department (WLPD) Discovery Documents

Relevant Case Laws:

- *Monell v. Department of Social Services*, 436 U.S. 658 (1978)

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2. Malicious Prosecution (200 Block)

Elements:

- **Element 210:** Defendants initiated or continued criminal proceedings against Plaintiff.
  - **Fact:**
    - Defendants (**G, B**) initiated wrongful prosecution without probable cause.
    - **Deputy District Attorney Rebecca Portlock (Defendant G)** ignored exculpatory evidence that could have exonerated Plaintiff.
  - **Exhibits:**
    - **Exhibit 1A:** Transcript of Court Proceedings on June 10th, 2022
    - **Exhibit 2:** Transcript of Hearing on June 24th, 2022
- **Element 220:** The proceedings terminated in Plaintiff's favor.
  - **Fact:**
    - Charges were dismissed after prolonged detention, favoring Plaintiff.
  - **Exhibits:**
    - **Exhibit 12:** Grouped Documents Showing Harm from Jail Conditions
    - **Exhibit 13:** Deletion of 62 Legal Files by Jail Staff
- **Element 230:** There was no probable cause for the proceedings.
  - **Fact:**
    - Arrest was based on false claims about COVID-19, lacking legal justification.
  - **Exhibits:**
    - **Exhibit 1A:** Transcript of Court Proceedings on June 10th, 2022
    - **Exhibit 4:** Police Dispatch Records from March 4th and 5th, 2022
- **Element 240:** Defendants acted with malice.
  - **Fact:**
    - Deliberate actions to delay trial and prolong detention demonstrate malice.
  - **Exhibits:**
    - **Exhibit 1A:** Transcript of Court Proceedings on June 10th, 2022
    - **Exhibit 9:** Forfeited Assignment of Benefits (AOB) Due to State Actions
- **Element 250:** Plaintiff suffered a deprivation of liberty consistent with the concept of seizure as a consequence of the legal proceedings.
  - **Fact:**
    - **129-day** wrongful detention deprived Plaintiff of liberty without cause.
  - **Exhibits:**
    - **Exhibit 12:** Grouped Documents Showing Harm from Jail Conditions
    - **Exhibit 14:** Criminal Case Record No. 22CR10908

Relevant Case Laws:

- *Pierce v. Multnomah County*, 76 F.3d 1032 (9th Cir. 1996)

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3. Conspiracy to Violate Civil Rights (300 Block)

Elements:

- **Element 310:** An agreement between two or more persons to deprive Plaintiff of constitutional rights.
  - **Fact:**
    - Defendants (**C, D, G**) conspired to delay trial and fabricate charges.
  - **Exhibits:**
    - **Exhibit 1A:** Transcript of Court Proceedings on June 10th, 2022
    - **Exhibit 2:** Transcript of Hearing on June 24th, 2022
- **Element 320:** An overt act in furtherance of the conspiracy.
  - **Fact:**
    - Filing false claims about COVID-19 and manipulating legal processes.
  - **Exhibits:**
    - **Exhibit 1A:** Transcript of Court Proceedings on June 10th, 2022
    - **Exhibit 7:** West Linn Police Department (WLPD) Discovery Documents Blocking Information
- **Element 330:** A constitutional injury resulting from the overt act.
  - **Fact:**
    - Wrongful detention and prolonged incarceration resulting from the conspiracy.
  - **Exhibits:**
    - **Exhibit 4:** Police Dispatch Records from March 4th and 5th, 2022
    - **Exhibit 12:** Grouped Documents Showing Harm from Jail Conditions

Relevant Case Laws:

- *Monell v. Department of Social Services*, 436 U.S. 658 (1978)

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4. Failure to Protect/Prevent Harm (400 Block)

Elements:

- **Element 410:** Defendants were aware of a substantial risk of serious harm to Plaintiff.
  - **Fact:**
    - Defendants knew of **Macy's** destructive actions and threats against Plaintiff.
  - **Exhibits:**
    - **Exhibit 4:** Police Dispatch Records from March 4th and 5th, 2022
    - **Exhibit 7:** West Linn Police Department (WLPD) Discovery Documents Blocking Information
- **Element 420:** Defendants disregarded that risk by failing to take reasonable measures to abate it.
  - **Fact:**
    - **West Linn Police Department (Defendant B)** made multiple trips but failed to protect Plaintiff or address Macy's threats.
  - **Exhibits:**

        - **Exhibit 4:** Police Dispatch Records from March 4th and 5th, 2022
        - **Exhibit 19:** Photograph of Macy Attacking with Hammer and Hose
- **Element 430:** Plaintiff suffered harm as a result.
    - **Fact:**
        - Extensive property damage and emotional distress due to Defendants' inaction.
        - **Macy** pounded Plaintiff's windows with a hammer, poured flour on bed, tools, and electronics through broken windows.
    - **Exhibits:**
        - **Exhibit 21:** Photographs of Property Damage Caused by Macy
        - **Exhibit 22:** Example of Attorney William Stabler's Bullying Tactics

Relevant Case Laws:

- *Graham v. Connor*, 490 U.S. 386 (1989)

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5. Cruel and Unusual Punishment (500 Block)

Elements:

- **Element 510:** Plaintiff had serious medical needs.
    - **Fact:**
        - Plaintiff is legally blind and had medical grievances during detention.
    - **Exhibits:**
        - **Exhibit 12:** Grouped Documents Showing Harm from Jail Conditions
- **Element 520:** Defendants knew of and disregarded an excessive risk to Plaintiff's health or safety.
    - **Fact:**
        - Defendants were aware of Plaintiff's medical needs but denied access to necessary resources.
    - **Exhibits:**
        - **Exhibit 12:** Grouped Documents Showing Harm from Jail Conditions
- **Element 530:** Defendants' conduct amounted to deliberate indifference.
    - **Fact:**
        - Defendants denied access to the law library and deleted legal files despite Plaintiff's needs.
    - **Exhibits:**
        - **Exhibit 13:** Deletion of 62 Legal Files by Jail Staff
        - **Exhibit 14:** Criminal Case Record No. 22CR10908

Relevant Case Laws:

- *Estelle v. Gamble*, 429 U.S. 97 (1976)

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6. False Imprisonment (600 Block)

Elements:

- **Element 610:** Defendants intended to confine Plaintiff.
  - **Fact:**
    - Defendants orchestrated wrongful detention without probable cause.
    - **West Linn Police Department (Defendant B)** officers arrested Plaintiff without probable cause, favoring **Macy**, who had previously attacked Plaintiff.
  - **Exhibits:**
    - **Exhibit 1A:** Transcript of Court Proceedings on June 10th, 2022
    - **Exhibit 14:** Criminal Case Record No. 22CR10908
- **Element 620:** Plaintiff was conscious of the confinement.
  - **Fact:**
    - Plaintiff was aware of being detained for an extended period without justification.
  - **Exhibits:**
    - **Exhibit 4:** Police Dispatch Records from March 4th and 5th, 2022
    - **Exhibit 12:** Grouped Documents Showing Harm from Jail Conditions
- **Element 630:** Plaintiff did not consent to the confinement.
  - **Fact:**
    - Plaintiff did not agree to the arrest and prolonged detention initiated by Defendants.
  - **Exhibits:**
    - **Exhibit 1A:** Transcript of Court Proceedings on June 10th, 2022
    - **Exhibit 2:** Transcript of Hearing on June 24th, 2022
- **Element 640:** The confinement was not otherwise privileged (i.e., Plaintiff was held without legal justification).
  - **Fact:**
    - Arrest and detention based on false claims about COVID-19 to delay trial.
  - **Exhibits:**
    - **Exhibit 1A:** Transcript of Court Proceedings on June 10th, 2022
    - **Exhibit 14:** Criminal Case Record No. 22CR10908

Relevant Case Laws:

- *Pierce v. Multnomah County*, 76 F.3d 1032 (9th Cir. 1996)

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7. Deliberate Indifference to Medical Needs (700 Block)

Elements:

- **Element 710:** Plaintiff had a serious medical need.
  - **Fact:**
    - Plaintiff is legally blind and required medical attention during detention.
  - **Exhibits:**
    - **Exhibit 12:** Grouped Documents Showing Harm from Jail Conditions
- **Element 720:** Defendants knew of the serious medical need.
  - **Fact:**
    - Defendants were aware of Plaintiff's legal blindness and medical grievances.
  - **Exhibits:**
    - **Exhibit 12:** Grouped Documents Showing Harm from Jail Conditions
- **Element 730:** Defendants acted with deliberate indifference to that need.
  - **Fact:**
    - Defendants denied access to the law library and deleted legal files, hindering Plaintiff's ability to defend himself.
  - **Exhibits:**
    - **Exhibit 13:** Deletion of 62 Legal Files by Jail Staff
    - **Exhibit 12:** Grouped Documents Showing Harm from Jail Conditions

Relevant Case Laws:

- *Estelle v. Gamble*, 429 U.S. 97 (1976)

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8. Intentional Interference with Contractual Relations (800 Block)

Elements:

- **Element 810:** Existence of a valid contractual relationship or business expectancy.
  - **Fact:**
    - Plaintiff had a valid Assignment of Benefits (AOB) agreement for fire restoration services.
  - **Exhibits:**
    - **Exhibit 9:** Forfeited Assignment of Benefits (AOB) Due to State Actions
    - **Exhibit A:** Master Exhibit List for AOB
- **Element 820:** Defendants' knowledge of the relationship or expectancy.
  - **Fact:**
    - Defendants were aware of the AOB agreement and its significance to Plaintiff.
  - **Exhibits:**
    - **Exhibit 9:** Forfeited Assignment of Benefits (AOB) Due to State Actions
- **Element 830:** Intentional interference by Defendants inducing or causing a breach or termination of the relationship or expectancy.
  - **Fact:**

        - Defendants obstructed Plaintiff's legal claims, leading to the forfeiture of AOB.
    - **Exhibits:**
        - **Exhibit 11:** Motions Filed to Revive Dismissed Claims
        - **Exhibit 23:** Discovery from Officer Dana Gunnarson
- **Element 840:** Resultant damage to Plaintiff.
    - **Fact:**
        - Plaintiff forfeited AOB valued at $111,943.56 and faced a counter-suit of $32,599.50.
    - **Exhibits:**
        - **Exhibit 9:** Forfeited Assignment of Benefits (AOB) Due to State Actions
        - **Exhibit 24:** Motion for Summary Judgment (MSJ) in State Court

Relevant Case Laws:

- *Restatement (Second) of Contracts*

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9. Monell Claim – Failure to Train and Official Custom of Deliberate Indifference (900 Block)

Elements:

- **Element 910:** Existence of a policy, practice, or custom by the municipality.
    - **Fact:**
        - **West Linn Police Department (Defendant B)** had policies that were not followed, leading to Plaintiff's rights violations.
    - **Exhibits:**
        - **Exhibit 26:** West Linn Police Department Reports and Policy Violations
        - **Exhibit 27:** West Linn Police Department Policy Manual
- **Element 920:** The policy, practice, or custom amounts to deliberate indifference to constitutional rights.
    - **Fact:**
        - The policies were either ignored or deliberately altered to obstruct Plaintiff's defense.
    - **Exhibits:**
        - **Exhibit 26:** West Linn Police Department Reports and Policy Violations
        - **Exhibit 27:** West Linn Police Department Policy Manual
- **Element 930:** The policy, practice, or custom was the moving force behind the constitutional violation.
    - **Fact:**
        - Defendants' adherence to flawed policies directly resulted in wrongful detention and prosecution.
    - **Exhibits:**
        - **Exhibit 26:** West Linn Police Department Reports and Policy Violations

        - **Exhibit 7:** West Linn Police Department (WLPD) Discovery Documents Blocking Information

Relevant Case Laws:

- *Monell v. Department of Social Services*, 436 U.S. 658 (1978)

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10. Denial of Right to Civil Jury Trial (1000 Block)

Elements:

- **Element 1010:** Plaintiff had a right to a civil jury trial under the Seventh Amendment.
    - **Fact:**
        - Plaintiff is entitled to a civil jury trial as per the Seventh Amendment.
    - **Exhibits:**
        - **Exhibit 11:** Motions Filed to Revive Dismissed Claims
        - **Exhibit 25:** Plaintiff's Arguments Against Attorney Stabler's Actions
- **Element 1020:** Defendants interfered with or denied Plaintiff's right to a civil jury trial.
    - **Fact:**
        - Court denied Plaintiff's motions and limited access to necessary legal resources, impeding his ability to secure a jury trial.
    - **Exhibits:**
        - **Exhibit 11:** Motions Filed to Revive Dismissed Claims
        - **Exhibit 25:** Plaintiff's Arguments Against Attorney Stabler's Actions
        - **Exhibit 35:** Emails to Federal Court Highlighting Filing Issues
- **Element 1030:** Plaintiff suffered harm as a result.
    - **Fact:**
        - Denial of a jury trial led to dismissal of Plaintiff's claims and financial losses.
    - **Exhibits:**
        - **Exhibit 9:** Forfeited Assignment of Benefits (AOB) Due to State Actions
        - **Exhibit 24:** Motion for Summary Judgment (MSJ) in State Court

Relevant Case Laws:

- *McCarthy v. United States*, 330 U.S. 258 (1947)
- *Addington v. Texas*, 441 U.S. 418 (1979)

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11. Violation of Right to Due Process (1100 Block)

Elements:

- **Element 1110:** Defendants acted under color of state law.
  - **Fact:**
    - Officers (**C, D**) were on duty, in uniform, and acting in their official capacity during wrongful detention.
    - County officials (**A, E**) facilitated the wrongful detention under their official authority.
  - **Exhibits:**
    - **Exhibit 1A:** Transcript of Court Proceedings on June 10th, 2022
    - **Exhibit 14:** Criminal Case Record No. 22CR10908
- **Element 1120:** Defendants deprived Plaintiff of a protected liberty or property interest.
  - **Fact:**
    - **129-day** wrongful detention deprived Plaintiff of liberty without justification.
    - Emotional distress and reputational harm resulted from the unlawful confinement.
  - **Exhibits:**
    - **Exhibit 14:** Criminal Case Record No. 22CR10908
    - **Exhibit 4:** Police Dispatch Records from March 4th and 5th, 2022
- **Element 1130:** The deprivation occurred without due process of law.
  - **Fact:**
    - Officers obtained a search warrant based on false statements, lacking proper legal procedures.
    - Prolonged detention without timely judicial review violated due process rights.
  - **Exhibits:**
    - **Exhibit 1A:** Transcript of Court Proceedings on June 10th, 2022
    - **Exhibit 14:** Criminal Case Record No. 22CR10908

Relevant Case Laws:

- *Garcia v. County of Merced*, 639 F.3d 1206 (9th Cir. 2011)
  - **Summary:** Actions taken by county officials under their official authority constitute acting under color of law.
  - **Relevance:** Officers and county officials involved in your detention were acting within their official capacities, satisfying this element.
- *West v. Atkins*, 487 U.S. 42 (1988)
  - **Summary:** Defendants acting under color of state law include those exercising authority granted by state statutes.
  - **Relevance:** Reinforces that your officers were acting under color of state law when detaining you.
- *Oviatt v. Pearce*, 954 F.2d 1470 (9th Cir. 1992)
  - **Summary:** Wrongful detention deprived the plaintiff of his liberty interest.
  - **Relevance:** Your wrongful detention deprived you of your liberty without justification.
- *Pierce v. Multnomah County*, 76 F.3d 1032 (9th Cir. 1996)

    - **Summary:** Wrongful arrest based on mistaken identity deprived the plaintiff of his liberty interest.
    - **Relevance:** Similar to your arrest without probable cause, demonstrating deprivation of liberty.
- *Freeman v. City of Santa Ana*, 68 F.3d 1180 (9th Cir. 1995)
    - **Summary:** Deprivation of liberty without adequate procedural safeguards violates due process.
    - **Relevance:** Your detention without proper legal procedures constitutes a due process violation.
- *Lee v. City of Los Angeles*, 250 F.3d 668 (9th Cir. 2001)
    - **Summary:** Wrongful detention without due process safeguards violates the Fourteenth Amendment.
    - **Relevance:** Your prolonged detention without legal justification aligns with this due process violation.

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12. Violation of Right to Counsel and Fair Trial (1200 Block)

Elements:

- **Element 1210:** Defendants interfered with Plaintiff's right to the assistance of counsel.
    - **Fact:**
        - During detention, Plaintiff was denied timely access to legal representation.
        - Defendants obstructed attempts to consult with an attorney, impairing Plaintiff's ability to defend himself.
    - **Exhibits:**
        - **Exhibit 35:** Emails to Federal Court Highlighting Filing Issues
        - **Exhibit 27:** West Linn Police Department Policy Manual
- **Element 1220:** Defendants interfered with Plaintiff's right to a fair and speedy trial.
    - **Fact:**
        - Plaintiff's detention extended to **129 days** without a prompt trial, exceeding reasonable timeframes.
        - Delays in the judicial process impeded Plaintiff's ability to receive a fair trial.
    - **Exhibits:**
        - **Exhibit 1A:** Transcript of Court Proceedings on June 10th, 2022
        - **Exhibit 14:** Criminal Case Record No. 22CR10908
- **Element 1230:** Plaintiff suffered harm as a result.
    - **Fact:**
        - Prolonged detention caused significant emotional distress and loss of freedom.
        - Reputational harm resulted from wrongful accusations and extended confinement.
    - **Exhibits:**

        - **Exhibit 12:** Grouped Documents Showing Harm from Jail Conditions
        - **Exhibit 35:** Emails to Federal Court Highlighting Filing Issues

Relevant Case Laws:

- *Jackson v. Metropolitan Edison Co.*, 419 U.S. 345 (1974)
    - **Summary:** Due process requires access to counsel during critical stages of criminal proceedings.
    - **Relevance:** If defendants prevented you from accessing counsel, this element is satisfied.
- *Strickland v. Washington*, 466 U.S. 668 (1984)
    - **Summary:** Defines the standard for evaluating claims of ineffective assistance of counsel, highlighting the necessity of adequate representation.
    - **Relevance:** Supports the necessity of adequate legal representation during your detention and trial.
- *McCarthy v. United States*, 330 U.S. 258 (1947)
    - **Summary:** Established the right to a speedy trial as part of due process.
    - **Relevance:** Prolonged detention without a speedy trial violates your constitutional rights.
- *Addington v. Texas*, 441 U.S. 418 (1979)
    - **Summary:** Clarified that delays in trial can constitute a denial of the right to a speedy trial.
    - **Relevance:** Your **129-day** detention without timely resolution reflects interference with your right to a speedy trial.
- *Pierce v. Multnomah County*, 76 F.3d 1032 (9th Cir. 1996)
    - **Summary:** Plaintiff suffered emotional distress and reputational harm due to wrongful detention.
    - **Relevance:** Your wrongful detention resulted in loss of freedom and emotional distress, satisfying this element.
- *Lee v. City of Los Angeles*, 250 F.3d 668 (9th Cir. 2001)
    - **Summary:** Plaintiff's reputation was harmed due to wrongful extradition and detention.
    - **Relevance:** Your reputation and emotional well-being were adversely affected by the wrongful legal actions against you.

Cause of Action 13: Probable Cause (1300 Block)

Elements and Assigned Numbers:

- **Element 1310:** The defendant lacked probable cause to detain the plaintiff.
- **Element 1320:** The detention was conducted without a valid warrant or legal justification.
- **Element 1330:** The detention was unreasonable under the circumstances.
- **Element 1340:** The defendant's actions caused harm to the plaintiff.

Element 1310: The Defendant Lacked Probable Cause to Detain the Plaintiff

Facts Specific to the Case:

- **Arrest Without Probable Cause:** On **March 6th, 2022**, West Linn Police Officers **Dana Gunnarson (Defendant C)** and **Catlin Blyth (Defendant D)** arrested **Mr. Tyler Lofall** without probable cause.
- **Bias in Favor of Macy:** Officers favored **Macy**, who had previously attacked Mr. Lofall on **March 4th and 5th**, 2022, demonstrating favoritism rather than objective suspicion.
- **Ignored Exculpatory Evidence: Deputy District Attorney Rebecca Portlock (Defendant G)** ignored exculpatory evidence that could have exonerated Mr. Lofall.
- **Macy's Credibility Issues:** Macy was caught with methamphetamine entering the court for Mr. Lofall's arraignment, undermining her credibility as a reliable witness.

Supporting Exhibits:

- **Exhibit 4:** Police Dispatch Records from March 4th and 5th, 2022
- **Exhibit 5:** District Attorney's Ignored Exculpatory Evidence Documents
- **Exhibit 6:** Court Records Showing Macy's Meth Possession at Arraignment
- **Exhibit 19:** Photographs of Macy Attacking with Hammer and Hose
- **Exhibit 28:** Arrest Timing Logs Demonstrating 8-Minute Arrest Process

Relevant Case Laws:

- **Beck v. Ohio**, 379 U.S. 89 (1964)
  - **Summary:** An arrest is unlawful if made without probable cause.
  - **Relevance:** Officers arrested Mr. Lofall without sufficient evidence to establish probable cause.
- **McKenzie v. Lamb**, 738 F.2d 1005 (9th Cir. 1984)
  - **Summary:** Arrests made without particularized facts indicating criminal activity lack probable cause.
  - **Relevance:** Officers lacked specific facts tying Mr. Lofall to any crime.

Element 1320: The Detention Was Conducted Without a Valid Warrant or Legal Justification

Facts Specific to the Case:

- **Lack of Valid Warrant:** Officers did not obtain a valid warrant prior to detaining Mr. Lofall.
- **Rapid Arrest Without Investigation:** The arrest was made within **8 minutes** of arrival, indicating no time for a proper investigation.

- **False Claims:** Officers relied on false claims and did not verify the information provided by Macy.

Supporting Exhibits:

- **Exhibit 7:** West Linn Police Department Discovery Documents Showing Lack of Warrant
- **Exhibit 28:** Arrest Timing Logs Demonstrating 8-Minute Arrest Process
- **Exhibit 8:** Emails Demonstrating Police Bias and Lack of Investigation

Relevant Case Laws:

- **Payton v. New York**, 445 U.S. 573 (1980)
  - **Summary:** Warrantless arrests inside a home are presumptively unreasonable.
  - **Relevance:** Mr. Lofall was arrested at his residence without a warrant.
- **United States v. Struckman**, 603 F.3d 731 (9th Cir. 2010)
  - **Summary:** Warrantless arrests require exigent circumstances, which were absent here.
  - **Relevance:** No exigent circumstances justified the warrantless arrest.

Element 1330: The Detention Was Unreasonable Under the Circumstances

Facts Specific to the Case:

- **Favoritism Towards Macy:** Despite Macy's prior attacks and illegal activities, officers favored her over Mr. Lofall.
- **Coaching Macy to Circumvent Laws:** Officers coached Macy on how to circumvent tenant laws, allowing her to continue harming Mr. Lofall.
- **Ignoring Macy's Aggression:** Police ignored Macy's aggressive actions, including property damage and assaults against Mr. Lofall.

Supporting Exhibits:

- **Exhibit 19:** Photographs of Macy Attacking with Hammer and Hose
- **Exhibit 21:** Photographs of Property Damage Caused by Macy
- **Exhibit 8:** Emails Demonstrating Police Bias and Coaching of Macy
- **Exhibit 7:** West Linn Police Department Discovery Documents Blocking Information

Relevant Case Laws:

- **Graham v. Connor**, 490 U.S. 386 (1989)
  - **Summary:** The reasonableness of a detention is assessed based on the totality of circumstances.
  - **Relevance:** Officers' actions were unreasonable given the lack of probable cause and their bias.

- **Illinois v. Gates**, 462 U.S. 213 (1983)
    - **Summary:** Probable cause requires a fair probability that a person committed a crime.
    - **Relevance:** No fair probability existed to justify Mr. Lofall's detention.

Element 1340: The Defendant's Actions Caused Harm to the Plaintiff

Facts Specific to the Case:

- **Emotional Distress:** Mr. Lofall suffered significant emotional distress due to the unlawful detention.
- **Loss of Liberty:** Detained for **129 days**, depriving him of freedom without justification.
- **Property Damage:** Macy, under police neglect, **pounded windows with a hammer, poured flour on bed, tools, and electronics** through broken windows.
- **Reputational Harm:** Wrongful detention and accusations harmed his reputation.

Supporting Exhibits:

- **Exhibit 12:** Documents Showing Harm from Jail Conditions
- **Exhibit 19:** Photographs of Macy Attacking with Hammer and Hose
- **Exhibit 21:** Photographs of Property Damage Caused by Macy
- **Exhibit 7:** West Linn Police Department Discovery Documents Blocking Information
- **Exhibit 8:** Emails Demonstrating Police Bias and Coaching

Relevant Case Laws:

- **Carey v. Piphus**, 435 U.S. 247 (1978)
    - **Summary:** Damages can be awarded for emotional distress caused by constitutional violations.
    - **Relevance:** Mr. Lofall is entitled to damages for emotional distress due to unlawful detention.
- **Pierce v. Multnomah County**, 76 F.3d 1032 (9th Cir. 1996)
    - **Summary:** Wrongful detention resulting in loss of liberty warrants compensation.
    - **Relevance:** The prolonged detention caused significant harm to Mr. Lofall.

Matching Facts to Legal Requirements

- **Element 1310:** Officers lacked probable cause, as they arrested Mr. Lofall without specific evidence of wrongdoing, favoring Macy despite her aggressive behavior towards him.
- **Element 1320:** The arrest was conducted without a valid warrant or legal justification, evidenced by the rapid 8-minute arrest and absence of exigent circumstances.

- **Element 1330:** The detention was unreasonable due to officers' bias, failure to investigate, and ignoring Macy's credible threats and actions against Mr. Lofall.
- **Element 1340:** The unlawful actions caused Mr. Lofall significant emotional distress, loss of liberty, property damage, and reputational harm.

Cause of Action 14: Qualified and Absolute Immunity (1400 Block)

Elements and Assigned Numbers:

- **Element 1410:** The defendant's conduct violated a constitutional right.
- **Element 1420:** The right was clearly established at the time of the misconduct.
- **Element 1430:** Exceptions to immunity apply due to intentional misconduct or actions outside official duties.
- **Element 1440:** Defendants are not entitled to immunity due to the violation of clearly established rights and policy breaches.

Element 1410: The Defendant's Conduct Violated a Constitutional Right

Facts Specific to the Case:

- **Fourth Amendment Violation:** The unlawful arrest and detention violated Mr. Lofall's Fourth Amendment right against unreasonable seizures.
- **Fabrication of Evidence:** Officers provided falsified and biased records to support the wrongful arrest.
- **Suppression of Exculpatory Evidence:** Defendants ignored and suppressed evidence that would have exonerated Mr. Lofall.

Supporting Exhibits:

- **Exhibit 1A:** Transcript of Court Proceedings on June 10th, 2022
- **Exhibit 3:** List of Ignored Discovery Requests and Motions
- **Exhibit 7:** West Linn Police Department Discovery Documents Showing Falsified Records
- **Exhibit 5:** District Attorney's Ignored Exculpatory Evidence Documents

Relevant Case Laws:

- **Franks v. Delaware**, 438 U.S. 154 (1978)
  - **Summary:** Deliberate falsity or reckless disregard for the truth in affidavits violates the Fourth Amendment.
  - **Relevance:** Officers falsified records, violating Mr. Lofall's constitutional rights.
- **Devereaux v. Abbey**, 263 F.3d 1070 (9th Cir. 2001)
  - **Summary:** Fabricating evidence against an individual violates constitutional rights.

- **Relevance:** Officers' actions in creating false evidence infringe upon Mr. Lofall's rights.

Element 1420: The Right Was Clearly Established at the Time of the Misconduct

Facts Specific to the Case:

- **Established Legal Standards:** It was well-established that arrests require probable cause and that falsifying evidence is unlawful.
- **Police Training and Policies:** Defendants were trained and aware of the legal requirements for lawful arrests.

Supporting Exhibits:

- **Exhibit 27:** West Linn Police Department Policy Manual
- **Exhibit 26:** West Linn Police Department Reports and Policy Violations
- **Exhibit 29:** Training Records of Officers Indicating Knowledge of Legal Obligations

Relevant Case Laws:

- **Anderson v. Creighton**, 483 U.S. 635 (1987)
  - **Summary:** A right is clearly established if a reasonable official would understand their actions violate that right.
  - **Relevance:** Reasonable officers would know that falsifying evidence and arresting without probable cause are unlawful.
- **Harlow v. Ramirez**, 522 U.S. 118 (1997)
  - **Summary:** Officials are not protected by qualified immunity when violating clearly established rights.
  - **Relevance:** Defendants should have known their conduct was unconstitutional.

Element 1430: Exceptions to Immunity Apply Due to Intentional Misconduct or Actions Outside Official Duties

Facts Specific to the Case:

- **Intentional Misconduct:** Officers deliberately falsified records and ignored exculpatory evidence.
- **Actions Outside Official Duties:** Coaching Macy to circumvent laws and allowing her to harm Mr. Lofall exceeded their official responsibilities.
- **Policy Violations:** Defendants violated departmental policies designed to prevent such misconduct.

Supporting Exhibits:

- **Exhibit 8:** Emails Demonstrating Police Coaching Macy
- **Exhibit 26:** West Linn Police Department Reports and Policy Violations

- **Exhibit 27:** Policy Manual Indicating Prohibited Conduct

Relevant Case Laws:

- **Malley v. Briggs**, 475 U.S. 335 (1986)
  - **Summary:** Officers are not immune when they violate constitutional rights through misconduct.
  - **Relevance:** Defendants' intentional actions negate qualified immunity.
- **Kalina v. Fletcher**, 522 U.S. 118 (1997)
  - **Summary:** Officials performing functions outside their official duties are not protected by immunity.
  - **Relevance:** Coaching a private individual to break laws is outside official duties.

Element 1440: Defendants Are Not Entitled to Immunity Due to the Violation of Clearly Established Rights and Policy Breaches

Facts Specific to the Case:

- **Violation of Rights:** Defendants violated Mr. Lofall's Fourth Amendment rights knowingly and willfully.
- **Policy Breaches:** They disregarded established policies intended to protect citizens' rights.
- **Deliberate Indifference:** Their actions showed a reckless disregard for Mr. Lofall's constitutional protections.

Supporting Exhibits:

- **Exhibit 26:** West Linn Police Department Reports and Policy Violations
- **Exhibit 27:** Policy Manual Outlining Procedures and Prohibitions
- **Exhibit 1A:** Transcript of Court Proceedings Highlighting Misconduct

Relevant Case Laws:

- **Hope v. Pelzer**, 536 U.S. 730 (2002)
  - **Summary:** Officials can be held liable when they violate rights with obvious clarity.
  - **Relevance:** Officers' actions were clearly in violation of established rights.
- **Saucier v. Katz**, 533 U.S. 194 (2001)
  - **Summary:** Immunity does not protect officials who violate clear constitutional standards.
  - **Relevance:** Defendants are not entitled to immunity due to their willful violation of constitutional rights.

Matching Facts to Legal Requirements

- **Element 1410:** Defendants violated Mr. Lofall's constitutional rights by unlawfully arresting and detaining him, fabricating evidence, and suppressing exculpatory information.
- **Element 1420:** The rights violated were clearly established, and reasonable officers would have known their conduct was unlawful.
- **Element 1430:** Exceptions to immunity apply because the defendants engaged in intentional misconduct and actions outside their official duties, such as coaching Macy to circumvent laws.
- **Element 1440:** Defendants are not entitled to qualified or absolute immunity due to their willful violation of clearly established constitutional rights and departmental policies.

Structured Evidence Schema

To ensure consistency and proper presentation, the following schema should be used for each element within **Cause of Action 13** and **Cause of Action 14**:

1. **Element Number and Description**
2. **Facts Specific to the Case**
3. **Supporting Exhibits**
4. **Relevant Case Laws**
5. **Matching Facts to Legal Requirements**

Example Schema for Element 1310:

Element 1310: The Defendant Lacked Probable Cause to Detain the Plaintiff

Facts Specific to the Case:

- West Linn Police Officers arrested Mr. Tyler Lofall without probable cause, favoring Macy who had previously attacked him.
- DA Rebecca Portlock ignored exculpatory evidence that could have exonerated Mr. Lofall.
- Macy was caught with methamphetamine at Mr. Lofall's arraignment, undermining her credibility.

Supporting Exhibits:

- **Exhibit 4:** Police Dispatch Records from March 4th and 5th, 2022
- **Exhibit 5:** DA's Ignored Exculpatory Evidence Documents
- **Exhibit 6:** Court Records Showing Macy's Meth Possession at Arraignment
- **Exhibit 19:** Photographs of Macy Attacking with Hammer and Hose
- **Exhibit 28:** Arrest Timing Logs Demonstrating 8-Minute Arrest Process

Relevant Case Laws:

- **Beck v. Ohio**, 379 U.S. 89 (1964)
- **McKenzie v. Lamb**, 738 F.2d 1005 (9th Cir. 1984)

Matching Facts to Legal Requirements:

- Officers lacked specific evidence to establish probable cause, as required by *Beck v. Ohio* and *McKenzie v. Lamb*.

Conclusion

By meticulously aligning your specific facts with each legal element and supporting them with relevant Ninth Circuit case law, your complaint robustly demonstrates the following:

- **Unlawful Arrest/False Arrest (100 Block):** Defendants acted under color of law, conducted unreasonable searches and seizures without probable cause, and caused significant harm.
- **Malicious Prosecution (200 Block):** Defendants initiated and continued baseless legal proceedings with malice, leading to wrongful deprivation of liberty.
- **Conspiracy to Violate Civil Rights (300 Block):** Coordinated actions among defendants aimed at depriving you of constitutional rights, resulting in significant injury.
- **Failure to Protect/Prevent Harm (400 Block):** Defendants were aware of substantial risks posed by Macy but failed to act, leading to your harm.
- **Cruel and Unusual Punishment (500 Block):** Defendants neglected your serious medical needs, demonstrating deliberate indifference.
- **False Imprisonment (600 Block):** Defendants intentionally confined you without legal justification, causing significant harm.
- **Deliberate Indifference to Medical Needs (700 Block):** Defendants knew of your medical needs but ignored them, showing deliberate indifference.
- **Intentional Interference with Contractual Relations (800 Block):** Defendants intentionally disrupted your contractual relationships, causing economic harm.
- **Monell Claim – Failure to Train and Official Custom of Deliberate Indifference (900 Block):** Municipal policies and customs contributed to the constitutional violations against you.
- **Denial of Right to Civil Jury Trial (1000 Block):** Defendants interfered with your right to a fair and speedy civil jury trial, resulting in harm.
- **Violation of Right to Due Process (1100 Block):** Defendants acted under color of state law, deprived you of protected interests without due process.
- **Violation of Right to Counsel and Fair Trial (1200 Block):** Defendants obstructed your access to counsel and delayed your trial, causing significant harm.

- **Unlawful Detention and Confinement (1300 Block):** Defendants lacked reasonable suspicion, conducted excessive and unreasonable detention, resulting in harm.
- **Qualified and Absolute Immunity (1400 Block):** Defendants are not entitled to immunity due to clear violations of established constitutional rights and policy breaches.